PROSECUTORS!

The Most Powerful Criminal Legal Actors

Bergen v. US

The United States Attorney is the representative not of an ordinary party to a controversy, but of a sovereignty whose obligation to govern impartially is as compelling as its obligation to govern at all; and whose interest, therefore, in a criminal prosecution is not that it shall win a case, but that justice shall be done. As such, he is in a peculiar and very definite sense the servant of the law, the twofold aim of which is that guilt shall not escape or innocence suffer. He may prosecute with earnestness and vigor—indeed, he should do so. But, while he may strike hard blows, he is not at liberty to strike foul ones. It is as much his duty to refrain from improper methods calculated to produce a wrongful conviction as it is to use every legitimate means to bring about a just one.

Price v. Montgomery

Facts: Paul Brewer is murdered. Natasha Martin confesses to being part of the scheme, but says Nickie Miller killed Brewer after Martin left. Miller is convicted.

Why isn’t that the end of the story?

What does *Imbler* have to do with this case?

Imbler & Price: Civil Immunity

Under cases like *Imbler* & *Price*, prosecutors are from civil liability for conduct “intimately associated with the judicial phase of the criminal process.” This immunity extends even to egregious misconduct, including the knowing suppression of exculpatory evidence.

Doe v. United States

The Crime Victims' Rights Act (CVRA), 18 U.S.C. Section 3771, grants victims “the reasonable right to confer with the attorney for the Government in the case.”

What happened after that in the Epstein case?

Legal Challenges and Rulings

Victim Lawsuit (2019): A federal judge ruled that Acosta and other prosecutors violated the Crime Victims' Rights Act by failing to inform victims of the non-prosecution agreement, calling it a "concealment".

11th Circuit Ruling (2020): A federal appeals court ruled 2-1 that the agreement could not be overturned, upholding the deal despite describing the case as a "tale of national disgrace". The court noted that because the victims' rights were violated before an indictment was formal, the victims had no legal standing to force a reversal of the deal.

DOJ Investigation: A 2020 Department of Justice review found that Acosta exercised "poor judgment" in approving the agreement but did not engage in professional misconduct or break the law.

Consequences and Aftermath

Acosta Resignation: Alex Acosta, who later became U.S. Secretary of Labor, resigned in 2019 following intense scrutiny of his role in the 2008 agreement.

Impact on Later Charges: Although the 2008 NPA protected Epstein in the Southern District of Florida, it did not prevent federal prosecutors in New York from bringing new sex trafficking charges against him in 2019, which led to his arrest and subsequent death in jail.

Co-conspirator Immunity: The unusual clause protecting co-conspirators has remained a central issue, as victims have attempted to invalidate it to force the prosecution of others involved in the trafficking ring.

Prosecutors' Rise to Power

Expansion of Criminal Codes

The Rise of Plea Bargaining: *Bordenkercher v. Hayes*

Mandatory Minimums; *US v. Angelos*

Largely Immune from Review

- *Wayte v US*: Discriminatory Effect ≠ Discriminator Purpose
- *McCleskey v Kemp*: Again, Impact ≠ Intent
- *US v Armstrong*: Discoverability of selective prosecution / non-prosecution requires showing of intent first
- *Price* (citing *Imbler*) & *Doe*: Very hard to hold prosecutors accountable.

What About Fair Prosecutors?

To understand the challenge facing highly ethical prosecutors who devote their careers to being fair and protecting their communities, we have to first understand the cases they receive. And to understand that, we need to understand what has happened to policing and how that interacts with changes in criminal codes & sentencing.

Policing 101: *Whren*

1. Who is Whren?
2. Was Whren breaking the law?
3. Did the police arresting him do anything illegal or unconstitutional?
4. Why do people care so much about this?

Policing 102: Pretextual Stops on Steroids

1. The federal government creates millions of dollars in grants to promote pretextual stops with trainings for police departments across the country: find an excuse to stop and look for guns or drug smuggling.

2. They are also trained that every stop could turn violent, and to be ready for that.

3. Black and Latino residents in communities like Ferguson experience extremely high levels of stops, citations, and arrests for minor offenses.

Prosecution 101: Intake

1. Prosecutors get easy-to-prove cases where police searches during a pretextual stops have revealed contraband.

2. Their dockets swell, and the community is increasingly distrustful of law enforcement in general. (We'll come back to police shootings later in the semester.)

3. Nearly all of these cases are easy to prosecute individually, but in aggregate it overwhelms offices and backlogs grow.

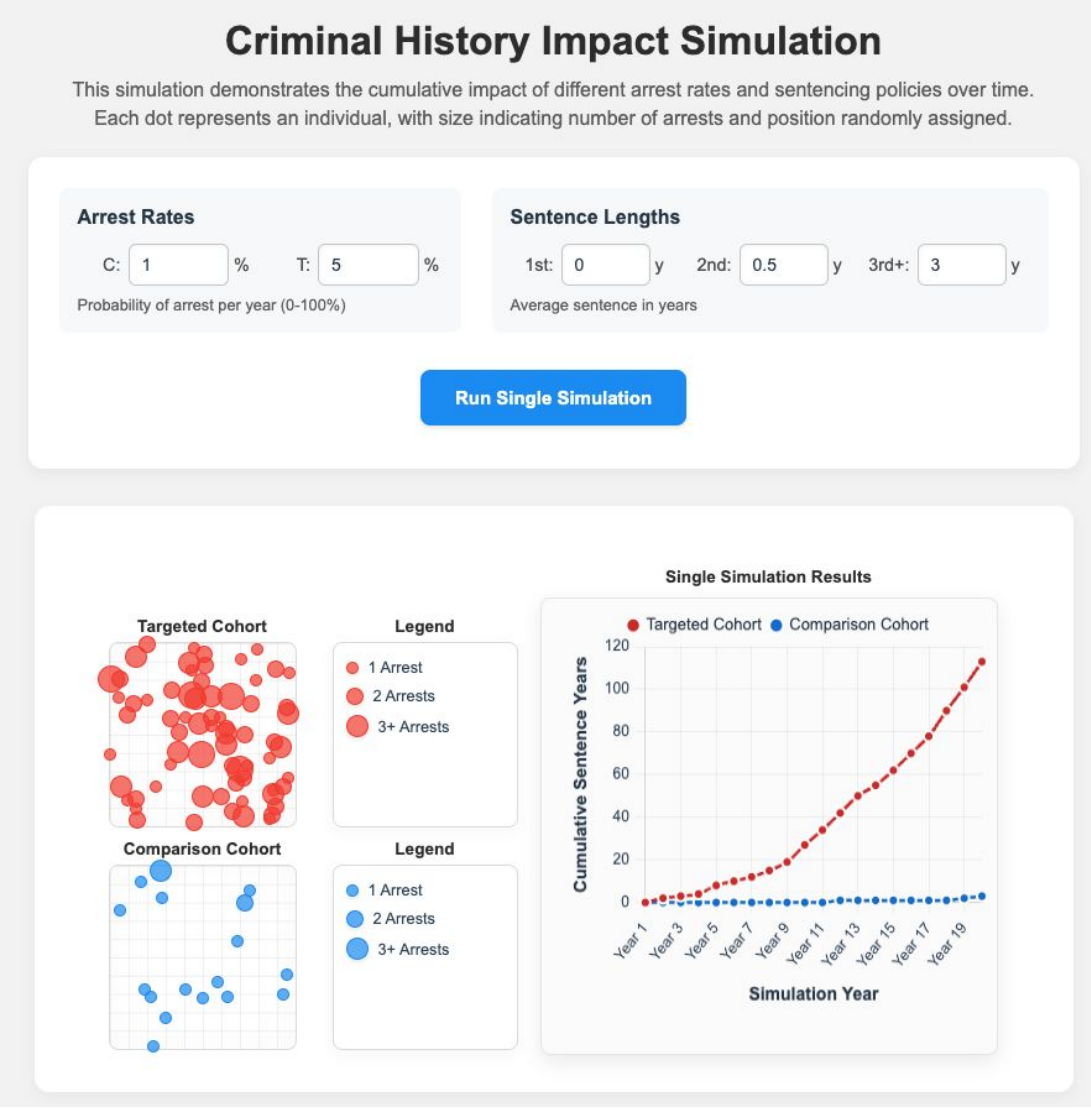
Prosecution 102: Escalating Sanctions

1. It is a fundamental tenet of enforcement that repeat offenders are sentenced increasingly severely.

2. The high-intensity policing in low-income, majority-minority communities means that repeat possession & technical offenses from pretextual policing are common.

3. As a result, sentences for non-violent conduct in those communities are routinely much more severe than for the same conduct in other communities.

Prosecution 103: The Prosecutor's Paradox



Neutral Practice → Unfair Outcomes

This is the prosecutors' paradox. In many jurisdictions where prosecutors are fair-minded and ethical, they still end up compounding upstream bias.

This is not their intent, and it is not their fault.

But they can help to fix, it.

Justice Design Cycle

1. Understand
2. Imagine
3. Pilot
4. Adopt/Adapt/Abandon

CA John Choi

One Size Doesn’t Fit All

There are so many good ideas that have been tested or that could be tested in jurisdictions across the country. Come up with one that fits your community, and let’s get to work!

Up Next:

ACTUS REUS

(& 1st quiz here)